

2. 9:00 AM CASE NUMBER: C23-02945
CASE NAME: ARIANA MOORE VS. DOES 1-30, INCLUSIVE
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: BIKRAMJIT S. RANDHAWA AS TRUSTEE OF THE RANDHAWA REVOCABLE TRUST, DATED OCTOBER
TENTATIVE RULING:

On the Court's own motion, the hearing on the motion is continued to **9:00 a.m. on May 1, 2026.**

3. 9:00 AM CASE NUMBER: C24-00580
CASE NAME: LARY HANSHAW VS. HECTOR ROMO
***HEARING ON MOTION IN RE: STRIKE DEFENDANT STONEGATE COMMUNITIES, LLC'S ANSWER TO COMPLAINT**
FILED BY: HANSHAW, LARY P.
TENTATIVE RULING:

Motion unopposed – granted.

4. 9:00 AM CASE NUMBER: C25-00188
CASE NAME: JEFFREY PARKHURST VS. VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1**
FILED BY: PARKHURST, JEFFREY
TENTATIVE RULING:

Motion withdrawn by moving party.

5. 9:00 AM CASE NUMBER: C25-01934
CASE NAME: GABRIEL BASSO VS. FRANCES TAMARO
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: OLSEN, BEN
TENTATIVE RULING:

Before the Court is Defendant Vanguard Properties, Inc., Defendant Ben Olsen, and Defendant Unjaree (Joy) Rayner (collectively, “Defendants” or “Vanguard”)’s Demurrer. The Demurrer relates to Plaintiff Gabriel Basso and Plaintiff Esther Basso (collectively, “Plaintiffs”)’s First Amended Complaint for (1) negligence; (2) breach of written contract for sale of real property; (3) fraud-intentional misrepresentation; (4) negligent misrepresentation; (5) breach of duty to disclose; (6) fraudulent concealment; (7) constructive fraud; (8) breach of covenant of good faith and fair dealing; and (9) declaratory relief.

Defendants demur to Plaintiffs’ FAC on the grounds that Plaintiffs’ claims are time-barred pursuant to CCP § 2079.4, as well as fail to state a cause of action under CCP 430.10(e), are uncertain under

subsection (f), and it cannot be ascertained from the pleading whether the contract is written, is oral, or implied by conduct under subsection (g).

For the following reasons, the Demurrer is **sustained-in-part**, with leave to amend, with respect to the breach of contract cause of action, but otherwise **overruled**.

Request for Judicial Notice

Defendant requests judicial notice of the Plaintiffs' First Amended Complaint in this matter. While the courtesy is appreciated, the Court need not take judicial notice of pleadings in its own file.

Brief Factual Background

This case arises out of a real estate transaction for the Property located at 128 Danefield Place, Moraga, CA 94556. Vanguard represented both the seller and buyer in connection with the sale of the property to the Plaintiffs. (FAC at ¶ 9.)

The Complaint alleges that "[i]n a series of advertising materials, the Realtor Defendants advertised the Property as '...5 bedrooms and 3 newly updated baths. The kitchen was extensively remodeled including venetian plaster finish and maple cabinets...'" (FAC ¶ 9.) The FAC alleges that on or about October 7, 2021 Plaintiffs and sellers entered into a Purchase Agreement by which Plaintiffs agreed to purchase the Property for \$2.3 million dollars. (FAC ¶ 10 and Ex. 1.)

The FAC further alleges that "[i]n connection with the purchase and sale of the Property, and prior to the close of escrow on November 2, 2021, the Realtor Defendants provided Plaintiffs with a variety of written real estate disclosures and made certain oral disclosures with regard to the Property, many of which were misleading, incomplete or untrue." (FAC at ¶ 11.)

Plaintiffs further allege "the Realtor defendants negligently failed to make a thorough and adequate inspection of the subject real property in that the Realtor defendants knew the three bathrooms had been recently remodeled, yet failed to perform an adequate inspection. After close of escrow, Plaintiffs discovered that the remodeled bathrooms were all done without the necessary permits and licenses." (Complaint ¶ 12.)

Plaintiffs allege that during subsequent investigation of the Property in January 2023, a number of "defects and deficiencies" were revealed, including poor workmanship and installation of the drainage systems, crack cinder block walls, deck around pool falling apart, damaged electrical wires, and deterioration of exterior elements, including windows and siding, as well as other things. (FAC ¶ 15.)

Plaintiffs allege that the defects in deficiencies in the Property have caused the value of the property to be significantly reduced. (FAC at ¶ 19.)

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The

Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Statute of Limitations

Defendants argue that Plaintiffs’ second, third, fourth, fifth, sixth, and seventh causes of action are barred by their respective statutes of limitations. For each cause of action, Defendants’ argument is premised on their contention that Plaintiffs were on notice of the alleged fraud or misrepresentation by way of the inspection reports and disclosures and that the accrual period started on or before November 2, 2021.

In opposition, Plaintiffs argue that (as pled in their FAC), Plaintiffs did not discover Vanguard’s failure to disclose until January 2023. (Opp. at 4:9-10 and FAC ¶ 15.) Additionally, they plead that “[a]ll limitations periods were tolled while the parties participated in the pre-litigation mediation process as required by the subject Agreement.” (FAC at ¶ 21.)

Under the discovery rule, the statute of limitations “begins to run when the circumstances are sufficient to raise a suspicion of wrongdoing, i.e., when a plaintiff has notice or information of circumstances sufficient to put a reasonable person on inquiry.” (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 648; see also *Moreno v. Sanchez* (2003) 106 Cal.App.4th 1415, 1423 [“a cause of action under the discovery rule accrues when the plaintiff discovers or should have discovered all facts essential to his cause of action ... ; this has been interpreted under the discovery rule to be when plaintiff either (1) actually discovered his injury and its negligent cause or (2) could have discovered injury and cause through the exercise of reasonable diligence.” [internal quotations omitted]”).

The *Moreno* court noted that “judicial decisions have declared the discovery rule applicable in situations where the plaintiff is unable to see or appreciate a breach has occurred. These sorts of situations typically involve underground trespass, negligently manufactured drugs, products liability, violations of the right of privacy, *latent defects in real property*, [(see, e.g., *Allen v. Sundean* (1982) 137 Cal.App.3d 216, 222 [186 Cal. Rptr. 863])] or *breaches of contract committed in secret*. [(See, e.g., *April Enterprises, Inc. v. KTTV* (1983) 147 Cal.App.3d 805, 832.)) [¶] Delayed accrual of a cause of action is viewed as particularly appropriate where the relationship between the parties is one of special trust such as that involving a fiduciary, confidential or privileged relationship.” (*Moreno*, supra, 106 Cal.App.4th at pp. 1423–1424 [italics added, fns. omitted].)

Here, the FAC does not reflect that Plaintiffs were on notice of all the alleged defects and deficiencies with the property on or before the close of escrow on November 2, 2021. Instead, Plaintiffs allege that they did not discover Vanguard’s failure to disclose until January 2023. (FAC at ¶ 15.) They further allege tolling of the limitations period during the parties’ pre-litigation mediation process. (*Id.* at ¶ 21.)

It is not appropriate to sustain a demurrer based on the statute of limitations unless the defects “clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.) Defendants’ reliance on *Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 is inapt (Demurrer at 11:7-13), the FAC does not “clearly and affirmatively” show that Plaintiffs’ claims are time-barred.

The Demurrer on this ground is **overruled**.

Uncertainty

Defendants also demurrer to Plaintiffs' second, third, fourth, fifth, sixth, and seventh causes of action on the grounds that they are fatally uncertain. However, the memorandum of points and authorities argues only that the second cause of action for breach of written contract for the sale of real property is uncertain and ambiguous. The bulk of this section of the brief relates to the discovery rule, which the Court discusses further, above.

Defendants argue that as they are not a party to the Residential Purchase Agreement, "it is unclear as to what breach of a written contract, if any, Plaintiffs are alleging." (Demurrer at 11:23-25.)

Uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

Here, however, there does seem to be some lack of clarity with respect to the agreements between the parties. The FAC alleges that "Vanguard acted as the dual agent for both seller and buyer in connection with the sale of the Property to Plaintiffs herein." (FAC at ¶ 3.) The FAC further alleges that "the Realtor Defendants provided Plaintiffs with a variety of written real estate disclosures and made certain oral disclosures with regard to the Property, many of which were misleading, incomplete or untrue." (*Id.* at ¶ 11.) It is unclear whether Plaintiffs' breach of contract claim against Defendants is based on the contract they have with them as an agent or under a third-party beneficiary theory with respect to the Residential Purchase Agreement.

The Opposition fails to clarify this issue. Plaintiffs refer to paragraph 11 of the FAC and argue that the allegations of the FAC are sufficiently clear to apprise the Defendants of the issues to be met. The Court cannot agree.

The Demurrer to Plaintiffs second cause of action for breach of written contract is **sustained**, with leave to amend.

Declaratory Relief

Finally, Defendants demur to Plaintiffs' declaratory relief cause of action on the grounds that "there is no actual controversy between Plaintiffs and Defendants, since Plaintiffs cannot sustain their Complaint against these Defendants." (Dem. at 12:14-15.) With the exception of Plaintiffs' uncertain breach of contract cause of action, that is not the case (as discussed above). The demurrer to this cause of action is **overruled**.

6. 9:00 AM CASE NUMBER: C25-02275
CASE NAME: SHERYL ILEDAN VS. DEREK THIBODEAU
HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION ON THE CROSS-COMPLAINT
FILED BY: THIBODEAU, DEREK
TENTATIVE RULING:

Parties emailed Department 32 to vacate the hearing. Hearing is vacated.